

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
CARLA PARRIS

Plaintiffs

SUMMONS

-against-

CITY OF NEW YORK , P.O. RANDY
DELANUEZ

Defendants

-----X

To the above name Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the date of service,(or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the

Dated: New York, New York
August 2, 2019

The Law Office of Andrew Bersin
11 Peter Ave.
Newburgh, New York 12550
(845)527-8812 fax 845-564k

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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CARLA PARRIS

Plaintiffs

COMPLAINT

-against-

CITY OF NEW YORK , P.O. RANDY
DELANUEZ

Defendants

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PRELIMINARY STATEMENT

1. The defendants are the City of New York, hereinafter referred to as "THE CITY", which was and still is a domestic municipal corporation, duly organized and existing by virtue of the Laws of the State of New York, which maintains the City of New York Police Department, (NYPD),. The defendant Police Officer (PO) Randy Delanuez hereinafter referred to as Delanuez who used unreasonable and excessive force in grabbing plaintiff's arm and forcibly pushing her into the police car causing injury to her wrist

That the plaintiff was caused to suffer serious injury on May 7, 2018, due to the excessive force used by the defendants .

Thereafter the plaintiff complied with all the conditions precedent to the commencement of the within action against the defendant, "THE CITY", by filing a Notice of Claim within ninety(90)days and appeared for an oral examination pursuant to the General Municipal Law and has commenced this action within a year and

ninety(90) days of the date that the within cause of action having been caused to accrue.

This lawsuit seeks compensatory and punitive damages from the defendants for the physical injuries due to brutality and excessive force during the course of these events.

II PARTIES

1. Plaintiff is an adult who resides in New York County.
2. The defendant the City of New York is a municipal corporation duly incorporated pursuant to the laws of the State of New York .
3. The defendant City of New York has established and maintains the New York City Police Department
4. Defendant DELANUEZ is an employee of the defendant, CITY OF NEW YORK.

III FACTUAL ALLEGATIONS

5. That on May 7, 2018, the plaintiff was falsely arrested and imprisoned in the County of the Bronx, by the defendant DELANUEZ who was a police officer in the 43 precinct in the Bronx.
6. During the course of said false arrest and imprisonment , the defendant , DELANUEZ, used excessive force causing the plaintiff to sustain serious injury

7. The Defendants' actions were taken under color of state law.
8. The Defendants' actions were reckless and taken in deliberate and callous indifference to Plaintiff's rights.

**AS FOR A FIRST CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT**

9. That, the plaintiff, CARLA PARRIS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 8 with same force and effect as if hereinafter more fully set forth at length herein.
10. That on May 7, 2018, the plaintiff, CARLA PARRIS, was falsely arrested and imprisoned by the defendant, and /or defendants by and through their agents, servants, and/or employees.
11. That, the plaintiff, CARLA PARRIS, was falsely arrested and imprisoned without justification and without cause and without excuse.
12. That the false arrest and imprisonment took place in the in the County of Bronx , and State of New York.
13. That at all times hereinafter mentioned and on May 7, 2018, the defendant, DELANUEZ, was a New York City police officer, and/or agent, servant and/or employee of the defendant "THE CITY", working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, "THE CITY".
14. That by reason of the foregoing, the plaintiff , CARLA PARRIS , was caused to suffer mental anguish; was unable to pursue his usual and regular activities; and, upon information and belief his injuries are permanent in nature and effect.
15. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having

acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. That, by reason of the foregoing, the plaintiff, CARLA PARRIS has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION
EXCESSIVE FORCE**

17. That, the plaintiff, CARLA PARRIS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 16, with same force and effect as if hereinafter more fully set forth at length herein.

18. That , all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant,” THE CITY”, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant,” THE CITY”.

19. That, all of the aforementioned acts, committed by police officers, agents, servants and/or other employees of the defendant, City of New York, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, “THE CITY”.

20. That on May 7, 2016, the defendant, DELANUEZ, did use excessive force in effectuating the arrest of plaintiff causing her to suffer serious injury to her wrist for which she required medical treatment.

**AS FOR A THIRD CAUSE OF ACTION
CIVIL RIGHTS VIOLATION UNDER 42 U.S.C. 1983**

21. That, the plaintiff, CARLA PARRIS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 20, with same force and effect as if hereinafter more fully set forth at length herein.

22.. That at all times hereinafter mentioned, the defendant, DELANUEZ and other unnamed police officers, were employed in their respective capacity by the defendant, “THE CITY”, and were acting under the color of his official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant,” THE CITY”.

23. That at all times hereinafter mentioned, the defendant DELANUEZ was employed in his respective capacity by the defendant, “THE CITY” and was acting under the color of the policies , statutes, ordinances, rules, and regulations of the defendant, “ THE CITY”.

24. That the violation of plaintiff’s constitutional rights is pursuant to 42 U.S.C. Section 1983.

25. Defendant DELANUEZ, is being sued in his personal and official capacities for defendants knew or should have known of the fact that this pattern of conduct was carried out by their agent, servants and /or employees, “THE CITY” has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, CARLA PARRIS, or other citizens injured thereby; or to take any disciplinary action whatsoever against any of their employees or agents.

26. The unlawful and illegal conduct of the defendants, their agents, servants, and/or employees and each of them deprived plaintiff, CARLA PARRIS, of the following rights, privileges, and immunities secured to him by the Constitution of the United States and of

the State of New York: The right of plaintiff, CARLA PARRIS, to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; The right of plaintiff, Carla Parris to be informed of the nature and cause of the accusation against her as secured to her under the sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, Carla Parris, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

27. That the deprivation of Plaintiff's Constitutional Rights was the result of the unconstitutional acts of defendant DELANUEZ and other unnamed New York City Police Officers, while acting under color of state law and within the scope of their employment.

28. That the deprivation of plaintiff's Constitutional Rights was the result of the defendant, THE CITY'S, custom and/or policy of arresting individuals without probable cause.

29. That the deprivation of plaintiff's Constitutional Rights was the result of the defendant, THE CITY'S, custom and/or policy of arresting minorities without probable cause.

30. That the deprivation of plaintiff, CARLA PARRIS'S Constitutional Rights was the result of the defendant, THE CITY'S custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

31 That the said custom and/or policies may be inferred from the existence of other similar Civil rights actions that have been brought against the defendant," THE CITY" .

32. That the detaining of the plaintiff, CARLA PARRIS, without probable cause or justification was the result of custom and /or policies adopted by the defendant, "THE CITY".

33. That the deprivation of Plaintiff, CARLA PARRIS, Constitutional Rights was a result of the defendants arrest of the Plaintiff CARLA PARRIS without probable cause..

34. That the deprivation of plaintiff's Constitutional Rights was a result of the defendant , THE CITY'S custom and policy in failing to discipline officers for the use of excessive force.

35. That the deprivation of plaintiff , CARLA PARRIS, Constitutional Rights was a result of the defendant , DELANUEZ ,and other police officers, use of excessive force.

36. That the custom and/or policies adopted by the defendant, "THE CITY" exhibited a deliberate indifference to the Constitutional Rights of plaintiff, CARLA PARRIS.

37. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, the negligent hiring, negligent retention, and negligent training of its various

employees and/or police officers, the plaintiff, CARLA PARRIS, was caused to have his civil rights as guaranteed by the U.S. Constitution , including but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and /or defendants herein, as set forth under 42 U.S. C. Section 1983.

38. That by reason of the foregoing, the plaintiff, CARLA, PARRIS was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries and permanent in nature and effect.

39. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

40. That by reason of the foregoing, the plaintiff, CARLA PARRIS, has sustained damages in an amount in excess of the jurisdictional limits of all the Lower Courts of the State of New York.

WHEREFORE, plaintiff, CARLA PARRIS, demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of action in an amount in excess of the jurisdictional limits of all of the Lower Courts of the State of New York; together with interest , as well as costs and disbursements and legal fees pursuant to 42 U.S. C. Section 1988 , of these causes of actions

Dated: August 2, 2019
Newburgh, New York

Yours, etc.

andrew bersin

Andrew Bersin
Law Office of Andrew Bersin
11 Peter Ave
New York, New York 12550
(845)527-8812 fax (845)564-9688